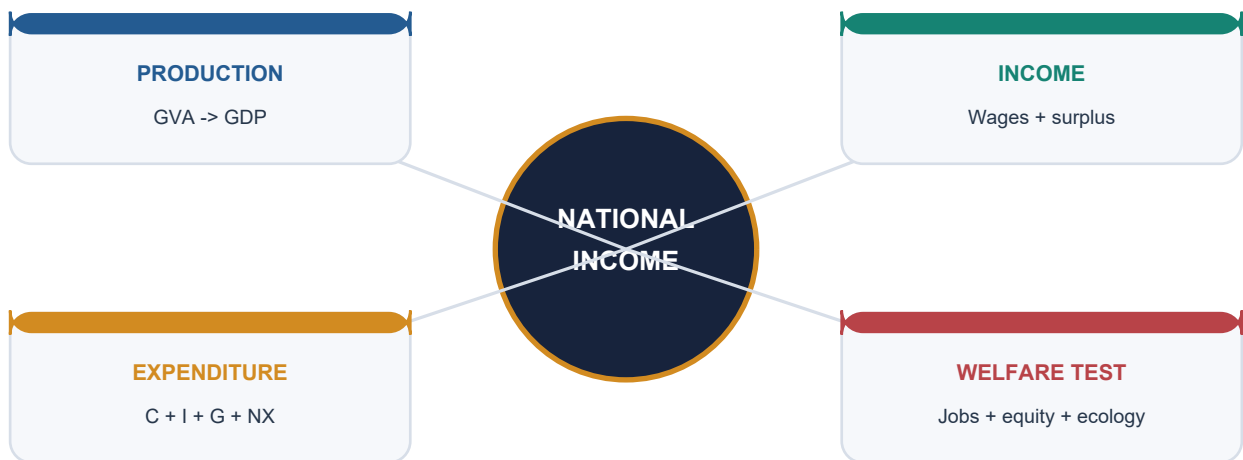


NCRWC and the Working of the Constitution - CORE / EXAM-COMPLETE

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Deterministic fallback visual: national income viewed through production, income, expenditure and welfare lenses.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

NCRWC and the Working of the Constitution - CORE / EXAM-COMPLETE

Subject: Polity · **Tier:** Core · **GS Paper:** GS-II **Official clause:** "Indian Constitution-historical underpinnings, evolution, features, amendments, significant provisions and basic structure." **Grounded in:** National Commission to Review the Working of the Constitution Report (2002); M. Laxmikanth, *Courseware on Indian Polity*, Eighth Edition (2026), Ch. 90. **Status legend:** FACT: constitutional/textual or settled static fact · □ statute/rule · □□ judicial holding · □ NCRWC recommendation (non-binding) · **ANALYSIS:** analytical inference. **Rule:** Every NCRWC proposal in this file is a recommendation, not current law unless a separate constitutional/statutory source is expressly identified. This owner is independently sufficient for Prelims and 10/15/20-mark Mains; no Advanced companion is required.

1. Identity and mandate

Attribute	Position
Creation	Set up by a Government of India resolution in 2000
Legal status	Executive, temporary and advisory; neither constitutional nor statutory
Chair	M.N. Venkatachaliah, former Chief Justice of India
Composition	11-member commission
Report	Submitted in 2002
Task	Review how the Constitution had worked over fifty years and recommend changes for effective governance and socio-economic development
Express limit	Work within parliamentary democracy and without disturbing the basic structure/basic features

Master distinction: The NCRWC reviewed the **working** of the Constitution; it was not a constituent assembly and did not claim power to rewrite the Constitution.

2. Terms of reference and study fields

The Commission examined whether existing constitutional provisions could respond to modern needs of efficient, smooth and effective government and socio-economic development. It organised the review around eleven broad fields:

1. parliamentary institutions and political stability;
2. electoral reform and standards in public life;
3. socio-economic change;
4. literacy, employment, social security and poverty;
5. Union-State relations;
6. decentralisation and local government;
7. enlargement of Fundamental Rights;
8. effectuation of Fundamental Duties;
9. DPSPs and Preambular objectives;
10. fiscal/monetary control and public audit; and
11. administration and standards in public life.

FACT: The Commission made **249 recommendations**: the eighth-edition source classifies **58** as requiring constitutional amendment, **86** as requiring legislation and **105** as capable of executive action.

ANALYSIS: This classification describes the Commission's proposed implementation route. It does not prove that any proposal was accepted.

3. Consultation, composition context and institutional identity

The Commission worked through consultation papers, expert studies, public responses and thematic deliberation before submitting its report. That method matters because a constitutional review commission has persuasive legitimacy only when it states the problem, receives competing views, explains the legal route and leaves the final choice to constitutionally authorised institutions.

Body/process	Constitutive source	Principal task	Why it is not the NCRWC
Constituent Assembly	Constituent process, 1946-49	Framed and adopted the Constitution	Exercised founding constituent authority
Parliament under Art 368	Constitution	Formally amends the Constitution	Legislative constituent power subject to procedure/basic structure
Law Commission	Executive resolution	Law-reform research and reports	Usually examines statutes/legal doctrine, not the whole constitutional system
Sarkaria/Punchhi Commissions	Executive commissions	Centre-State relations	Sectoral federal reviews
Administrative Reforms Commissions	Executive commissions	Public-administration reform	Administrative rather than comprehensive constitutional review
NCRWC	Government resolution, 2000	Reviewed fifty years of constitutional working	Temporary, advisory and expressly basic-structure bounded

Composition caution: Membership gave the Commission legal, parliamentary, administrative and public-policy experience, but expertise did not convert its report into law or constituent power.

4. Text, institutions, conventions and political practice

The **working of the Constitution** is wider than compliance with its written Articles.

CONSTITUTIONAL TEXT

↓ implemented through

institutions + statutes + rules + conventions + political parties + administration

↓ tested by

rights outcomes + accountability + federal trust + legislative deliberation + remedies

Dimension	Constitutional question	Failure mode	Reform route
Text	Is power or right clearly allocated?	ambiguity, obsolete design or remedial gap	amendment within basic structure
Institution	Does the authorised body have independence/capacity?	vacancy, capture, delay, weak expertise	statute, finance, appointments, procedure
Convention	Do actors respect unwritten role restraints?	technically lawful but constitutionally corrosive conduct	political accountability, reason-giving, codification where needed
Political practice	Do parties and majorities preserve opposition and deliberation?	centralisation, criminalisation, opaque finance, weak committees	electoral/party and parliamentary reform
Federal practice	Are consultation and autonomy real?	unilateralism, delayed assent, fiscal mistrust	councils, negotiated federalism, judicial review
Rights enforcement	Can a right-holder obtain an effective remedy?	cost, delay, weak investigation, unequal access	courts, legal aid, administration and compliance

□□ *Kesavananda Bharati* (1973) supplies the basic-structure boundary; *Minerva Mills* (1980) emphasises limited amending power and Part III-Part IV harmony; *S.R. Bommai* (1994) demonstrates that federalism and secularism are

enforceable structural commitments. These later cases are governing law, not NCRWC recommendations.

Examiner line: Constitutional working is the conversion of text into restrained power, accountable institutions, effective rights and cooperative political practice.

5. Diagnosis: what "working" meant

The NCRWC's report treated constitutional failure mainly as a problem of **institutional practice**, not absence of a constitutional text. Its principal concern clusters were:

Concern cluster	NCRWC diagnosis (historical, 2002)	Analytical use
Democratic trust	Government and public services had become detached from popular sovereignty and dignity	Constitution can fail through behaviour without textual collapse
Political integrity	Criminalisation, corruption, defections and opaque party finance	Electoral/party reform is constitutional maintenance
Institutional performance	Legislature, executive, administration and justice suffered delay, cost and weak accountability	Efficiency and constitutionalism must be reconciled
Social transformation	Rights, education, employment and welfare commitments were under-realised	Formal guarantees require institutions and resources
Federal/local design	Consultation and devolution were inadequate	Constitutional division needs cooperative practice
Justice delivery	Delay, weak investigation/prosecution and limited access undermined rule of law	Remedies are part of constitutional effectiveness

Status caution: These were the Commission's assessments at the time of its report. Do not present its historical data or rhetoric as a verified 2026 condition.

6. High-yield recommendations

6.1 Fundamental Rights, property, DPSPs and Duties

Area	□ Recommendation	Current-law caution
Rights	Add express rights against torture, to compensation for unlawful deprivation of life/liberty, privacy/family life, access to courts/speedy justice, equal justice/legal aid and environmental necessities	Some subjects later developed through judgments/statutes; that does not make the NCRWC wording constitutional text
Speech/equality	Expand express discrimination and speech/media formulations	Not enacted merely because similar values appear in case law
Education	Enlarge the proposed education guarantee for specified groups	Check current FACT: Art 21A, not the NCRWC draft
Emergency	Protect additional rights from suspension beyond Arts 20 and 21	Current law remains governed by FACT: Arts 358-359
Property	Recast Art 300A to require public purpose, non-arbitrariness and rehabilitation protection for specified SC/ST land	□ Proposal, not the text of Art 300A
DPSPs	Rename Part IV and create implementation-review mechanisms	Non-binding
Duties	Add voting, tax and family-responsibility duties; implement the Verma Committee's operationalisation proposals	Non-binding

6.2 Parliament and the executive

- ☐ define and delimit legislative privileges;
- ☐ create standing committees for constitutional amendments/legislative planning;
- ☐ prescribe minimum sitting days;
- ☐ use a **constructive vote of no confidence**;
- ☐ cap the Council of Ministers at **10 per cent** of the popular House;
- ☐ establish Lokpal/Lokayuktas within the proposed design;
- ☐ create statutory civil-service boards, promote lateral entry at senior levels and replace secrecy culture with transparency;
- ☐ enact public-interest-disclosure and anti-benami-corruption measures.

Trap: The later 91st Amendment used a **15 per cent** ceiling for Union/State ministries (with a minimum for States), not the NCRWC's 10 per cent recommendation. Similar subject does not mean identical adoption.

6.3 Federal and inter-State relations

- ☐ specify subjects requiring Inter-State Council consultation;
- ☐ place disaster/emergency management in the Concurrent List;
- ☐ establish an Inter-State Trade and Commerce Commission;
- ☐ consult the Chief Minister before appointing a Governor;
- ☐ retain Article 356 but use it only as a last resort and test majority on the floor;
- ☐ avoid dissolving a State Assembly before parliamentary approval of the proclamation;
- ☐ reform river-water adjudication; and
- ☐ prescribe a time-limit for Presidential action on a reserved State Bill.

ANALYSIS: Some recommendations overlap with judicial doctrines or later debates. Cite the governing Article/judgment for current law and NCRWC only for the reform case.

6.4 Judiciary and justice delivery

- ☐ create a constitutional National Judicial Commission for Supreme Court appointments and a mechanism for judicial complaints;
- ☐ raise retirement ages;
- ☐ confine constitutional invalidation and contempt powers as proposed;
- ☐ establish judicial councils for planning/budgets;
- ☐ deliver higher-court judgments ordinarily within a specified time and clear arrears; and
- ☐ simplify the subordinate-court hierarchy and use plea bargaining/ADR.

Trap: NCRWC's National Judicial Commission is not the later NJAC constitutional scheme and is not the current collegium. Keep commission proposal, later amendment and case law separate.

6.5 Local government and weaker sections

- ☐ give Panchayats/Municipalities clearer exclusive functions and fiscal domains;
- ☐ strengthen audit, dissolution safeguards and election-law uniformity;
- ☐ separate delimitation/reservation/rotation from State Election Commissions;
- ☐ improve SC/ST/BC representation, education and reservation administration;
- ☐ strengthen atrocity-law enforcement and institutions for bonded-labour rehabilitation; and
- ☐ adapt local-government reforms to North-East constitutional traditions.

6.6 Elections, parties and anti-defection

Field	Recommendation
Criminalisation	Disqualify specified serious accused/convicted persons and create speedy special courts/benches
Election disputes	Dedicated election benches/special courts
Multiple seats	Prevent one candidate contesting the same office from more than one constituency
Model Code	Give the Model Code statutory force
ECI appointment	Multi-office selection body including government, opposition and presiding officers
Political parties	Comprehensive law on internal functioning, accounts, candidate integrity and funding disclosure
Anti-defection	Defectors resign and recontest; bar remunerative office; vest decision in ECI rather than Speaker/Chairman

ANALYSIS: The current law may differ on every row. Use Election-Commission.md, Political-Parties.md and Anti-Defection-Law.md for the operative position.

7. Recommendation-by-recommendation implementation audit

Implementation must be tested against the exact proposal, later instrument and legal result.

NCRWC proposal area	Later development	Audit verdict
Council of Ministers ceiling at 10%	91st Amendment (2003) adopted a 15% ceiling, with a State minimum	Related reform, not exact adoption
Stronger transparency/open government	Right to Information Act 2005	Broadly convergent subject; do not claim causal implementation without official evidence
Education guarantee	86th Amendment inserted Art 21A in 2002	Overlapping constitutional reform chronology; wording/scope must be compared separately
Lokpal/Lokayukta framework	Lokpal and Lokayuktas Act 2013	Later statute with its own design; NCRWC recommendation was not self-executing
Judicial appointments commission	99th Amendment/NJAC enacted in 2014 and invalidated in 2015	Proposal did not become the current appointments system
Plea bargaining/ADR expansion	Criminal-procedure and legal-services reforms developed later	Functional follow-through varies by instrument; not proof of wholesale acceptance
Political-party law/internal democracy	No comprehensive party law implementing the proposed code	Substantially pending as a reform field
Anti-defection decision by ECI and narrow whip	Tenth Schedule continues to place decision with presiding officer, subject to review	Core proposal not implemented
Governor appointment through a plural committee	Arts 155-156 framework remains	Proposal not enacted
Moving disaster management to Concurrent List	Disaster Management Act 2005 created a statutory framework without that List transfer	Statutory response, not the recommended constitutional relocation

Audit rule: Similarity, sequence and common policy language do not establish implementation. Write “implemented”, “partly reflected”, “modified”, “rejected”, “overtaken” or “pending” only after comparing the exact recommendation with the later legal instrument.

8. Working-of-Constitution evaluation framework

Constitutional morality

Constitutional morality means fidelity to constitutional forms, equal citizenship, institutional roles, reasoned procedure and limits on power. It is not personal morality. *Navtej Singh Johar* (2018) used constitutional morality and transformative constitutionalism in a rights setting; the doctrine remains bounded by text, structure and precedent.

Accountability and legislative functioning

- political accountability: elections, confidence, opposition and public reason;
- legal accountability: judicial review, rights and statutory remedies;
- financial accountability: legislative control, CAG and audit;
- administrative accountability: records, reasons, transparency and grievance redress;
- parliamentary quality: sitting time, committees, scrutiny of Bills and delegated legislation.

Coalition, majority and centralisation

Coalitions may enlarge bargaining and federal voice but also fragment responsibility. Stable single-party majorities may improve decisiveness but can centralise agenda control. The constitutional test is not the party configuration; it is whether deliberation, opposition, federal consultation, rights and institutional autonomy survive.

Reform-method ladder

diagnose exact failure
↓
practice/convention repair
↓ if insufficient
executive rule or institutional capacity
↓ if legal authority needed
ordinary legislation
↓ if constitutional text must change
Article 368 amendment
↓ always
basic structure + rights + federalism + implementation review

9. Evaluation: how to use a commission report

Strengths

- comprehensive, cross-institutional review rather than isolated amendment;
- expressly respected parliamentary democracy and basic structure;
- separated constitutional, legislative and executive routes;
- connected rights with governance capacity, federalism and accountability.

Limitations

- advisory status meant no self-executing force;
- breadth produced proposals of uneven precision and political feasibility;
- some recommendations sought constitutionalising solutions where practice/capacity was the deeper problem;
- later law may resemble, modify or reject a proposal without formally “implementing the NCRWC”.

ANALYSIS: The best assessment is **selective constitutional maintenance**, not wholesale implementation. Test each proposal against basic structure, federalism, rights, democratic accountability and the current legal position.

10. Answer architecture (10/15/20-mark support)

10.1 Demand map

Demand	Answer spine
Mandate/status	Resolution -> review-not-rewrite -> basic-structure limit -> advisory report
Major recommendations	Cluster by rights, institutions, federalism, justice and elections; do not list randomly
Relevance today	Institutional diagnosis -> independently verify later law -> selective reform
Commission reports and constitutional change	Expertise/consultation gains -> democratic/non-binding limit -> Parliament/courts control
Working versus text	Formal adequacy -> behavioural/capacity failures -> targeted reforms

10.2 Thesis options

- *The NCRWC's central insight was that India's constitutional deficit lay less in the text than in the working of parties, legislatures, administration and justice.*
- *Its recommendations are a reform menu, not a parallel Constitution: each must pass through the proper amendment, legislative or executive route and remain subject to basic structure.*
- *The Commission is most useful when cited diagnostically-linking a reform to a named institutional failure-not as authority that the reform is already law.*

10.3 Mark-scaled structures

Marks	Structure	Evidence
10	Identity/mandate -> 3 recommendation clusters -> non-binding verdict	3-4 named proposals
15	Terms -> diagnosis -> rights/institutions/federal/election reforms -> status caution	5-6 proposals
20	Mandate -> concern map -> thematic recommendations -> implementation test -> balanced conclusion	7-9 proposals with current-law qualifications

10.4 Evidence units

- **Claim:** the NCRWC was constitutionally self-limited. **Evidence:** ☐ terms required parliamentary democracy and non-interference with basic structure. **Analysis:** review was reformist, not constituent. **Qualification:** the Commission itself had no legal veto over later amendment.
- **Claim:** its anti-defection proposal separated adjudication from partisan presiding officers. **Evidence:** ☐ vest decision in the ECI. **Analysis:** targets conflict of interest. **Qualification:** current Tenth Schedule still controls.
- **Claim:** its federal recommendations emphasised consultation. **Evidence:** ☐ CM consultation for Governors and a stronger Inter-State Council. **Analysis:** addresses legitimacy and trust. **Qualification:** recommendation is not constitutional convention or law by itself.

11. Must-Know Facts

- FACT: Government resolution, 2000; report, 2002.
 - FACT: 11 members; chaired by M.N. Venkatachaliah.
 - FACT: Review of **working**, not rewriting.
 - FACT: Parliamentary democracy/basic structure were express limits.
 - FACT: 249 recommendations: 58 constitutional, 86 legislative, 105 executive in the eighth-edition classification.
 - ☐ Every substantive proposal remains a recommendation unless separately enacted/recognised.
 - ANALYSIS: Later similarity is not proof of causal implementation.
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12. UPSC traps and source discipline

- Do not call NCRWC a constitutional or statutory body.
- Do not call the Venkatachaliah Commission a constituent assembly.
- Do not merge NCRWC, Sarkaria, Punchhi, Law Commission or Administrative Reforms Commission.
- Do not present a proposed right, ministry ceiling, appointment panel or MCC status as current law.
- Do not say a later statute adopted NCRWC unless an official source establishes that link.
- Write separately: FACT: current text · ☐ enacted law · ☐ holding · ☐ NCRWC proposal · ANALYSIS: evaluation.

Routing

- Parliament/executive: Parliament.md, PM-and-Council-of-Ministers.md
- Federalism/Governor: Centre-State-Relations.md, Governor-and-CM.md
- Elections/parties/defection: Election-Commission.md, Political-Parties.md, Anti-Defection-Law.md
- Judiciary: Supreme-Court.md, High-Court.md
- Rights/DPSP/Duties: Fundamental-Rights.md, Directive-Principles.md, Fundamental-Duties.md